

25AVCV00596 25AVCV00596

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ANTOINETTE SIMS,

Plaintiff,

v.

DAMIAN DEMETRIUS COBORN; ALTAVEESE CORREA; and DOES 1 through 50, inclusive,

Defendants.

Case Number 25AVCV00596

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 22, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a negligence action. Defendants Damian Demetrius Coborn ("Coborn") and Altavesse Correa ("Altaveese") (together "Defendants") move to compel the deposition of Narinder S. Grewal, M.D. ("Grewal") and for monetary sanctions.

On May 8, 2025, Plaintiff Antoinette Sims ("Plaintiff") filed her form Complaint against Defendants, asserting two causes of action for (1) Motor Vehicle Negligence and (2) General Negligence. Plaintiff alleges that she suffered injury following a motor vehicle collision on December 9, 2024 involving a vehicle leased or rented by Defendants.

On June 27, 2025, Defendants filed their Answer.

On June 22, 2026, Defendants filed their Motion to Compel Grewal's deposition. This motion is unopposed.

II. Preliminary Procedural Issues

Meet and Confer Requirement – A motion to compel deposition shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450 subd. (b)(2).)

Defense counsel Derick Hovsepian declares that he has made several attempts to contact Grewal's office regarding the deposition, but the office has failed to return his messages or provide him with any alternative scheduling availability for Grewal's deposition. This is sufficient to satisfy the meet and confer requirement.

III. Legal Standard

Standard for Compelling Non-Party Depositions – Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person. (Code of Civ. Proc., § 2025.010.) A party may obtain discovery within the state of California from a non-party individual by way of oral deposition and a deposition for production of business records, upon issuance of a deposition subpoena. (Code Civ. Proc., § 2020.010.) A defendant may serve a deposition notice without leave of court at any time after he or she has been served or has appeared in the case. (Code Civ. Proc., § 2025.210, subd. (a).)

The attendance and testimony of any deponent who is not a party or an officer, director, managing agent, or employee of a party, as well as the production by the deponent of any document or electronically stored information requires the service on the deponent of a deposition subpoena under Chapter 6, commencing with Section 2020.010. (Code Civ. Proc., § 2025.250, subd. (b).) If a subpoena requires the attendance of a witness or the production of documents or electronically stored information at the taking of a deposition, the court, upon motion reasonably made by a party to the case, may make an order directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. (Code Civ. Proc., § 1987.1, subd. (a)-(b).) In making an order pursuant to motion made under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive. (Code Civ. Proc., § 1987.1, subd. (c).)

IV. Discussion

Application – Defendants move to compel the deposition of non-party witness Grewal pursuant to Code of Civil Procedure sections 2025.430, 2025.280, 2020.010, 1987.1, 2025.450, subdivision (g) and 2023.010, subdivisions (d) and (i) on the grounds that Grewal failed to appear for deposition and produce documents.

Defendants assert that on April 28, 2026, they served their notice of deposition for Grewal and served a subpoena for his deposition and production of Plaintiff's medical records and bills, noticing the deposition and production for May 12, 2026. (Motion, p. 3:12-16.) On May 12, 2026, Defendants proceeded with the deposition, but no witness appeared, and counsel took a Certificate of Non-Appearance. (Motion, p. 3:16-18.) Despite repeated attempts to reach Grewal's office, Defendants assert that he has failed to respond to the subpoena or provide alternate dates of availability. (Motion, p. 3:19-23.)

On review of the unopposed moving papers and the exhibits provided by Defendants, the Court cannot compel Grewal's deposition or production of documents.

To start, some of the statutes under which Defendants move are not applicable to the issue at hand. Code of Civil Procedure section 2025.430 applies if the party noticing the deposition fails to attend or appear with it. Here, Defendants noticed the deposition and proceeded with it, and this section does not apply to Grewal. Section 2025.450 only applies where the non-compliance is on behalf of a party to the action or an officer, director, managing agent, or employee of a party, and does not apply to a nonparty witness like Grewal.

However, the most notable issue here is the fact that Grewal was not properly served. Defendants' motion, at times, appears to reference Grewal's production of a witness, rather than his own personal appearance. Regardless, it is clear from the context and subpoena itself that Defendants are seeking to compel the deposition of Grewal, an individual, and not of Advanced Pain Management, the business he works for. The NOD provided to Plaintiff notices the taking of deposition of Grewal. Grewal alone is the named deponent, and the NOD makes no reference to any categories or topics for deposition or otherwise request designation of a person most knowledgeable as would be expected if serving an NOD on a non-person business or entity. The deposition subpoena itself is directed to Grewal and orders him to appear to testify as a witness. Section 4, directed to representatives of a business or other entity, is left blank.

Therefore, because the deposition subpoena is clearly directed solely to Grewal, not as a representative of Advanced Pain Management but as an individual treating physician, the only authorized method of service of a deposition subpoena is personal service. Specifically, Code of Civil Procedure section 2020.220, subdivision (b)(1) provides: "Any person may serve the subpoena by personal delivery of a copy of it as follows: (1) If the deponent is a natural person, to that person." Only if the deponent is an organization may personal service be effected on an individual authorized to accept service of a subpoena. (Code Civ. Proc., § 2020.220, subd. (b)(2).)

Here, the proof of service of the deposition subpoena states that Grewal was served on May 1, 2026 through an individual named "Virginia Barajas, MA / Authorized to Accept." This method of service is improper, and for Grewal to be legally obligated to respond to the deposition subpoena, and for the Court to have any authority to compel his compliance, he must be personally served. Because service was defective, Grewal is under no legal obligation to appear or produce the requested documents, and the Court cannot compel his appearance or production of records.

The same is true for service of Defendants' motion to compel a nonparty deponent's testimony and production of records. California Rules of Court rule 3.1346 states: "A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." Defendants filed a proof of service on September 11, 2026, which states that Grewal was served with the moving papers through "Yvonne 'C.', Medical Assistant, Authorized to Accept." There is no evidence Grewal has agreed to accept service by mail or electronic service. Service is not authorized on an agent authorized to accept service where the target of the motion is a named individual. Therefore, service of this motion was not proper as to Grewal.

Moreover, the deposition subpoena is defective for failure to provide a Notice to Consumer to both Plaintiff and Grewal. Notwithstanding the failure to properly serve the deposition subpoena, this defect alone presents grounds for denial.

“Personal records” include any documents, copies, writings, or electronically stored information pertaining to a “consumer” and maintained by any “witness” who is a physician, chiropractor, or other health care professional as defined by the statute. (Code Civ. Proc., § 1985.3, subd. (a)(1).) A “consumer” includes any individual who has used the services of any such witness, including a treating physician. (Code Civ. Proc., § 1985.3, subd. (a)(2).) The deposition subpoena here requests records from the last 10 years pertaining to Plaintiff, including but not limited to her examinations, medical history, diagnosis, treatment, testing, radiology, prognosis, prescriptions, and billing (including, but not limited, to payments, adjustments, reimbursements, and explanations of benefit). (Hovsepian Decl., Ex. 1.) These records are held by Grewal, Plaintiff’s treating physician.

Where a deposition subpoena commands attendance, testimony, and production of documents, and the subpoenaed party is a “witness,” and the business records described in the deposition subpoena are “personal records” pertaining to a “consumer,” the service of the deposition subpoena must be accompanied either by (1) a copy of the proof of service of the Notice to Consumer as described by Section 1985.3(e) or (2) the consumer’s written authorization to release personal records described in Section 1985.3(c)(2). (Code Civ. Proc., § 2020.510, subd. (c).) The notice of privacy rights requirement is set forth by Code of Civil Procedure section 1985.3, subdivision (e) as follows: “Every copy of the subpoena duces tecum...shall be accompanied by a notice, in a typeface designed to call attention to the notice, indicating that (1) records about the consumer are being sought from the witness named on the subpoena; (2) if the consumer objects to the witness furnishing the records to the party seeking the records, the consumer must file papers with the court or serve a written objection as provided in subdivision (g) prior to the date specified for production on the subpoena; and (3) if the party who is seeking the records will not agree in writing to cancel or limit the subpoena, an attorney should be consulted about the consumer’s interest in protecting his or her rights of privacy. If a notice of taking of deposition is also served, that other notice may be set forth in a single document with the notice required by this subdivision.”

There is nothing on the record indicating that Plaintiff was ever served with a notice of privacy rights. From the copy of the subpoena provided, it also does not appear that Grewal was served with either a proof of service of the Notice to Consumer to Plaintiff or Plaintiff’s written authorization to release her personal records. The subpoena, therefore, is defective in this regard as well.

Furthermore, the notice of deposition served on Plaintiff is also defective. The notice states: “NOTICE IS FURTHER GIVEN that the Most Knowledgeable Person at ELITE AUTO BODY COLLISION, INC., shall produce” the requested documents related to Plaintiff’s medical records as detailed above. (Hovsepian Decl., Ex. 1, p. 2:22-24.) The deposition subpoena for personal appearance and production of documents, however, identifies Grewal as associated with Advanced Pain Management, not Elite Auto Body Collision, Inc. Additionally, as discussed, Defendants must serve on Plaintiff not only a notice of the deposition, but also a notice of privacy rights and a copy of the deposition subpoena. (Code Civ. Proc., § 2025.240.) Here, there is no evidence that Plaintiff was served with any document other than the NOD and a copy of the deposition subpoena. The NOD does not contain the information required by Section 1985.3(e) and no separate Notice to Consumer has been provided.

Finally, Code of Civil Procedure section 2025.270, subdivision (c) states that if “the party giving notice of the deposition is a subpoenaing party, and the deponent is a witness commanded by a deposition subpoena to produce personal records of a consumer or employment records of an employee, the deposition shall be scheduled for a date at least 20 days after issuance of that subpoena.” Here, per Defendants, the notice of deposition was issued on April 28, 2026, served on Grewal on May 1, 2026, and set the deposition and date of production for May 12, 2026. Pursuant to Section 2025.270(c), Defendants were required to set the deposition for a date at least 20 days after the subpoena and deposition notice were issued, rendering the earliest possible date for which Defendants could set this deposition May 18, 2026.

Accordingly, Defendants did not properly serve the deposition subpoena and required Notice to Consumer on either Grewal or Plaintiff. Defendants’ motion is DENIED without prejudice. Defendants may properly issue, notice, and serve a deposition subpoena in accordance with the governing authorities, and this Order shall not be construed to preclude Defendants’ from seeking enforcement through the Court in the event of proper issuance and subsequent noncompliance, including as to

non-party witness Grewal.

V. Conclusion

Defendants Damian Demetrius Coborn and Altaveese Correa's Motion to Compel the Deposition of Narinder S. Grewal, M.D.'s Deposition and Request for Sanctions are DENIED. This Order is made without prejudice to Defendants' right to seek relief for any future noncompliance with a properly issued subpoena.